

24STCV10326 24STCV10326

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MOTION TO CONTINUE TRIAL

The Court tenders the following

tentative decision in the matter Tina Mei Ting Loo, et al. v. SC Group 856 S. Wilton, LLC, Los Angeles County Superior Court case number 24STCV10326, set for hearing on July 20, 2026. Pascual Montalvo, Alcal Specialty Contracting, Inc., West Coast Hot Mop, Inc., and Art Deck, Inc. (collectively, Defendants) move to continue the trial currently set for October 19, 2026, to a date in April 2027 or later. Tina Mei Ting Loo, et al. (collectively, Plaintiffs) oppose the motion. The motion is granted.

A. Legal Standard

Continuances of trials are disfavored.

(Rules of Court, rule 3.1332(c).) A party seeking a continuance of the date set for trial must make the request for a continuance by a noticed motion or an ex parte application as soon as reasonably practical once the necessity for the continuance is discovered. (Id., rule 3.1332(b).) The request for continuance may be granted on an affirmative showing of good cause. (Id., rule 3.1332(c).) “A party’s excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts” constitutes good cause for continuance. (Id., rule 3.1332(c)(6).)

Factors to be considered in determining

whether good cause exists include: the proximity of the trial date; whether there was any previous continuance, extension of time, or delay of trial due to any party; the length of the continuance requested; the availability of alternative means to address the problem that gave rise to the motion or

application for a continuance; the prejudice that parties or witnesses will suffer as a result of the continuance; whether trial counsel is engaged in another trial; whether the interests of justice are best served by a continuance; and any other fact or circumstance relevant to a fair determination of the motion or application. (Id., rule 3.1332(d).)

B. Discussion

Defendants argue that good cause exists for continuance because of the addition of themselves as new parties. (Rules of Court, rule 3.1332(c)(5).) Good cause for continuance exists if “(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or (B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party’s involvement in the case.” (Ibid.) Here, the present action was first filed on April 24, 2024. (Pritchard Decl. ¶ 4.) Plaintiffs amended their complaint to include Defendants on November 14, 2025, and all Defendants were served by the end of that month. (Id. ¶¶ 5–6.) Defendants filed responsive pleadings by March 2026. (Id. ¶ 7.) Expert designations are due at the end of August 2026. (Id. ¶ 9.) Defendants contend that they cannot conduct sufficient discovery to prepare their defense based on Plaintiffs’ cost of repair estimate by the current trial date. (Id. ¶ 10.) Yet Defendants received the estimate on February 23, 2026. (Libertino Decl. ¶ 5.) Additionally, Defendants originally requested that the parties stipulate to a trial continuance on April 10, 2026, which Plaintiffs declined. (Ibid.)

In balancing the factors outlined in rule 3.1332(d), the Court finds it proper to continue trial. Some factors weigh against continuance. Trial is set for October 2026, and thus imminent. (Rules of Court, rule 3.1332(d)(1).) And Plaintiffs oppose continuance having refused to stipulate, citing prejudice they will face by having potential relief delayed. (Id., rules 3.1332(d)(5), (9).) But the vast majority of the relevant factors weigh in favor. There has not been any previous continuance. (Id., rule 3.1332(d)(2).) The length of the requested continuance is relatively brief, at less than a year. (Rules of Court, rule 3.1332(d)(3).) They do not appear to be alternative means to address the issue of Defendants obtaining necessary discovery to prepare their case. (Id., rule 3.1332(d)(4).) And Defendants have shown that they too will suffer prejudice if the relief is not granted, as they will lack the chance to complete discovery. (Id., rule

3.1332(d)(5).) The Court finds that the interests of justice are best served by continuing trial and allowing Defendants to conduct discovery. The Court does not find that Defendants unreasonably delayed these proceedings by waiting until a month offering the stipulated continuance to file the present motion. Accordingly, Defendants' motion is granted.

Conclusion:

The Court grants the motion.